

- (ii) no pension shall be increased by an amount greater than is sufficient to bring the total means of the pensioner, including the increased pension up to 150*l.* a year in the case of an unmarried person, or 200*l.* a year in the case of a married person.

2. Where a pensioner is in receipt of two pensions to which section one of this Act applies or of one such pension and of a pension as a naval or military pensioner, such pensions shall, for the purposes of the above scale, be treated as one pension of an amount equal to the aggregate amount of the two pensions.

3. Where before the passing of this Act a pension has, since the grant thereof, been increased, the increase authorised under this Act shall be calculated on the original amount of the pension, and the amount by which it may be increased under this Act shall be reduced by the amount of the increase so previously granted.

PART II.

ADDITIONAL LIMITATION ON INCREASE OF PENSIONS GRANTED AFTER THE 4TH DAY OF AUGUST 1914.

3. Where an existing pension granted on or after the 4th day of August 1914, is larger than a pre-war pension by reason of an improvement in the pension scale or an increase in the pensionable emoluments made since that date, the pension shall not be increased under this Act by an amount greater than is sufficient to make the increased pension equal to the amount to which the pre-war pension might have been increased under Part I. of this Schedule.

CHAPTER 37.

An Act to provide for raising further Money for the purpose of the Telegraph Acts, 1863 to 1916, and to amend section four of the Telegraph (Money) Act, 1876. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Grant for
purposes of
Telegraph
Acts.

1.—(1) The Treasury may, with a view to the development of the telephonic system in the United Kingdom, without prejudice to the exercise of any powers previously given for the like purpose, issue out of the Consolidated Fund, or the growing produce thereof, such sums not exceeding in the whole the sum of ten million pounds, as may be required by the Postmaster-General for the purpose of developing the telephonic system according to estimates approved by the Treasury.

(2) The Treasury may, if they think fit, for the purpose of providing money for sums so authorised to be issued out of the Consolidated Fund, or for repaying to that fund all or any part of the sums so issued, borrow by means of terminable annuities for a term not exceeding twenty years, and all sums so borrowed shall be paid into the Exchequer.

(3) The said annuities shall be paid out of moneys provided by Parliament for the service of the Post Office, and, if those moneys are insufficient, shall be charged on and paid out of the Consolidated Fund of the United Kingdom, or the growing produce thereof.

(4) The Treasury may also, if they think fit, for the same purpose borrow money by means of the issue of Exchequer bonds, and the Capital Expenditure (Money) Act, 1904, shall have effect as if this Act had been in force at the time of the passing of that Act. 4 Edw. 7. c. 21.

(5) Section five of the Telephone Transfer Act, 1911 (which relates to audit), shall have effect as if this Act were included amongst the Acts therein mentioned. 1 & 2 Geo. 5. c. 26.

2.—(1) There shall be laid before both Houses of Parliament on or before the thirtieth day of November in every year, if Parliament is then sitting, or if Parliament is not then sitting, within one week after the then next meeting of Parliament— Annual statements as to capital charges as to telegraph and telephone services.

(a) Statements showing as regards the telegraph service and the telephone service respectively the amount expended during the previous financial year on account of the annual charge in respect of any securities or terminable annuities created under the Telegraph Acts, 1868 to 1916, and any Acts amending those Acts, for the purpose of the service; and

(b) Statements of account in a form approved by the Treasury, showing as regards the telegraph and telephone services respectively the income and expenditure during the previous financial year.

(2) An amount equal to any surplus shown on the statement of account made out in any year with respect to the telegraph service shall, in accordance with directions to be given by the Treasury, be issued out of the Consolidated Fund or the growing produce thereof to the National Debt Commissioners to be applied in the reduction of debt up to an amount equal to that created for the purpose of the telegraph service.

(3) The first statements under this section shall be made out with respect to the annual charges and the income and expenditure for the year ending on the thirty-first day of March, nineteen hundred and twenty.

(4) In this section the expression “the telegraph service” means the telegraph service exclusive of the telephone service.

(5) The foregoing provisions of this section shall be in substitution for the provisions of section four of the Telegraph (Money) Act, 1876.

Short title.

3. This Act may be cited as the Telegraph (Money) Act, 1920, and may be cited with the Telegraph Acts, 1863 to 1916.

CHAPTER 38.

An Act to amend the Law relating to the Salaries and Allowances of Resident Magistrates in Ireland.

[16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power of Lord Lieutenant to prescribe the salaries and allowances of resident magistrates.

37 & 38 Vict. c. 23.

1.—(1) The Lord Lieutenant may, by order made with the concurrence of the Treasury, prescribe the rates and scales of salaries and allowances to be paid to resident magistrates and the conditions applicable thereto, and, subject to the provisions of the order, any rates, scales, and conditions thereby prescribed shall have effect as from the date therein specified instead of the rates, scales, and conditions prescribed by or in pursuance of the Resident Magistrates and Police Commissioners Salaries Act, 1874, or any other Act, or by any previous order under this section or otherwise.

(2) An order made under this section shall have effect as if enacted in this Act, but may be revoked or varied by any subsequent order so made.

(3) The salaries and allowances payable in pursuance of any such order shall (except where and so far as the order may otherwise direct) be paid out of moneys provided by Parliament.

4 & 5 Will. 4. c. 24.

(4) A resident magistrate retiring within three years from the date when the first order made under this section after the passing of this Act comes into operation shall be treated for the purposes of section twelve of the Superannuation Act, 1834, as if he had been in the class from which he retires for a period of three years, notwithstanding that he may have been promoted within that period.

Belfast resident magistrates.

1 & 2 Geo. 5. c. 58.

2. The powers of the Lord Lieutenant under this Act shall not be exercised as respects the salaries payable by the corporation of the city of Belfast to the resident magistrates for that city under the Resident Magistrates (Belfast) Act, 1911, except with the concurrence of the corporation.